



File No.: EXP202211140

RESOLUTION FOR FILING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection became aware through information from the ASSOCIATION OF THE BODIES OF THE ADMINISTRATION OF PENITENTIARY INSTITUTIONS (ACAIP) of certain facts that could violate data protection legislation.

On August 8, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigative actions referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate the SECRETARY GENERAL OF PENITENTIARY INSTITUTIONS with NIF S2813060G (hereinafter, ALIAS) in relation to the following facts:

The complaining association requests that the AEPD declare the nullity of the Video Surveillance Instruction ***INSTRUCTION.1, dated ***DATE.1, from the General Secretariat of Penitentiary Institutions. The contentious-administrative jurisdiction must still resolve whether the instruction is null or not. However, the complaining association raises issues that must be analyzed by the AEPD insofar as the instruction is currently in force. The claiming party considers that the instruction allows the placement of cameras in locations where the right to privacy of inmates or the principles of last resort, suitability, necessity, and proportionality are violated, specifically identifying the following: places where coercive means are deposited, cells intended for the application of the coercive means of provisional isolation, and areas designated for conducting full-body searches.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD.

The inspection actions aimed to verify the adequacy of the data processing of persons deprived of liberty to the aforementioned Instruction ***INSTRUCTION.1, dated ***DATE.1, from the General Secretariat of Penitentiary Institutions, being aware of the following points:

On February 14, 2023, a request for information was sent to the General Secretariat of Penitentiary Institutions in the following terms:

- 1.- Whether the control systems provided for in Instruction ***INSTRUCTION.1 referenced in the previous paragraph are already implemented in the centers.
- 2.- Whether instructions have been given to the Penitentiary Centers on how to effectively plan its application or if the decision on how to apply it is left to the head of each Center.
- 3.- Whether any development of the Instruction has been made.
- 4.- The Instruction states that "The purpose of this instruction is not to regulate the video surveillance systems that, without sound capture elements or being associated with recording systems, may be installed in certain areas to complete the direct observation work by penitentiary staff over the persons who are detained. This purpose is served by cameras that, while respecting the right to privacy, may be installed in so-called observation cells, family communication rooms, or others for the visual control of their occupants, duly informing such circumstance to users through informative signs placed in a visible location at their entrance." In relation to these systems, determine whether any type of personal data processing is carried out.
- 5.- In point 4.3 of the Instruction (Location of video surveillance cameras), it states that:
As a general criterion, the video surveillance system of a center must cover all areas and common dependencies for general use to enable penitentiary treatment and the achievement of the purposes provided for in Article 1 of Organic Law 1/1979, of September 26, General Penitentiary Law (LOGP). It is also deemed necessary to have video surveillance in the following locations:
 - Where coercive means are deposited.

- Cells intended for the application of the coercive means of provisional isolation.
- Cells intended for prolonged mechanical restraint, with sound capture.
- Areas specifically designated for conducting full-body searches, which will have an independent sound recording system and elements that preserve the privacy of the affected person.

The images and sounds recorded during the execution of this measure will be confidential, adopting the necessary measures to ensure that access to them is granted only for the exercise of supervisory duties by the competent authority. Consequently, only in the event of a complaint or report will the images be extracted and made available to the competent authority for review.

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On the contrary, if there is no complaint or report regarding this matter, after three months from its recording, the images will be destroyed ex officio without being extracted from the system.

Determine whether, as a result of these treatments, an impact assessment has been conducted to evaluate the risks and, if applicable, the measures aimed at mitigating them.

5.- In point 4.4 of the Instruction (Procedure for the extraction of images and sounds), it is stated that images recorded related to certain events specified therein must be extracted ex officio from the usual image deletion circuit of the video surveillance system.

Regarding this process, determine whether processes have been described or established that determine which personnel will be responsible for the extraction, whether there is a traceability system for the entire process, and whether minimum security measures have been established.

6.- On the other hand, the instruction establishes that the person holding the direction of the center will be responsible for the processing of the images from the center's video surveillance system, and must adopt all necessary measures to ensure:

- a. That the viewing and extraction of the images is only carried out by personnel expressly designated by the person responsible for the Direction for this function, prohibiting such actions to any unauthorized person.
- b. That there are no breaches or leaks in the chain of custody of the images. For this purpose, a procedure must be established that allows, through the assignment of keys or individualized codes, the unequivocal identification of each of the persons designated for the viewing and extraction of images. This will allow for the accreditation of traceability and non-alteration of the same, with personnel accessing them being obliged to maintain the necessary confidentiality.

Determine whether common criteria have been provided to all Centers to ensure that the above requirements are met.

On March 1, 2023, a response was received from the General Secretariat of Penitentiary Institutions that needed to be completed, so a new request for information was sent:

(...).
 (...).
 (...).
 (...).

On March 30, 2023, a response was given by the respondent to the information request, in the following terms:

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 (...).
 (...).
 (...).

Beyond the analysis of the norm itself, the need to ascertain whether it was being effectively implemented in non-transferred penitentiary centers was raised, and for this purpose, it was determined that an on-site inspection should be carried out in a selected center according to different criteria of representativeness.

The selected Center is as follows:

Name: ***CENTER.1

Address: ***ADDRESS.1

Municipality: ***MUNICIPALITY.1

Province: ***PROVINCE.1

On June 19, 2023, the aforementioned inspection was carried out, resulting in the following actions documented in the appropriate inspection report:

(...).

...

LEGAL GROUNDS

I

Competence

According to the functions provided in Articles 48.a) and 50 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions (hereinafter LO 7/2021), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions. Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Furthermore, the fourth additional provision of the LOPDGDD (Procedure regarding the powers attributed to the Spanish Agency for Data Protection by other laws) establishes that "The provisions of Title VIII and its development rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the powers attributed to it by other laws."

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II

Treatments for the Purpose of Video Surveillance

Article 22.6 of the LOPDGDD states the following:

"The processing of personal data derived from images and sounds obtained through the use of cameras and camcorders by the Security Forces and Bodies and by the competent authorities for monitoring and control in penitentiary centers and for the control, regulation, monitoring, and discipline of traffic shall be governed by the legislation transposing Directive (EU) 2016/680, when the processing is for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or enforcing criminal sanctions, including the protection and prevention against threats to public safety. Outside of these cases, such processing shall be governed by its specific legislation and, subsidiarily, by Regulation (EU) 2016/679 and this organic law."

III

Legality of Processing

Article 11 of Organic Law 7/2021 establishes the following:

1. The processing shall only be lawful to the extent that it is necessary for the purposes indicated in Article 1 and is carried out by a competent authority in the exercise of its functions.
2. Any law regulating the processing of personal data for the purposes included within the scope of application of this Organic Law must indicate, at a minimum, the objectives of the processing, the personal data that will be subject to it, and the purposes of the processing.

IV

Obligations of the Data Controller

Article 27 of Organic Law 7/2021 establishes the following:

1. The data controller, taking into account the nature, scope, context, and purposes of the processing, as well as the levels of risk to the rights and freedoms of individuals, shall apply appropriate technical and organizational measures to ensure that the processing is carried out in accordance with this Organic Law and with the provisions of sectoral legislation and its implementing regulations. Such measures shall be reviewed and updated as necessary.
2. Among the measures mentioned in the previous section, the implementation of appropriate data protection policies shall be included when they are provided in relation to the processing activities.

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V

Conclusion

The complaining association requests that the AEPD declare the nullity of the Video Surveillance Instruction ***INSTRUCTION.1, dated ***DATE.1, from the General Secretariat of Penitentiary Institutions.

This Agency is not competent to declare the nullity of provisions and administrative acts such as the requested Instruction; it will be, if applicable, the contentious-administrative jurisdiction that must rule on the legality of the instruction.

However, the complaining association raises issues that must be analyzed by the AEPD to the extent that the instruction is currently in force. For this purpose, preliminary investigative actions have been carried out to verify whether the Instruction ***INSTRUCTION.1 mentioned is being effectively implemented in the non-transferred penitentiary centers as established therein, and, to that end, to carry out an on-site inspection in a selected penitentiary center according to various representativeness criteria.

The inspected center is in the phase of implementing new systems to comply with Instruction No. ***INSTRUCTION.1, although most of the measures are already implemented.

The purpose of this instruction is to regulate the processing of personal data obtained through the recording of images and sounds from the existing video surveillance systems in any penitentiary establishment dependent on the General Secretariat of Penitentiary Institutions, with the aim, among others, of protecting, safeguarding, and facilitating the exercise of the rights provided by law that may be affected.

Furthermore, the installation of video surveillance cameras requires prior assessment of less intrusive alternatives to fundamental rights and public freedoms, and their installation must provide more advantages than disadvantages for the fundamental rights of individuals.

Images captured in penitentiary centers will only be processed when such action is appropriate, relevant, and not excessive in relation to the need for penitentiary surveillance.

In the areas designated for exclusion of cameras, it has been confirmed that they are indeed not installed.

The video surveillance systems in special dependencies (places where coercive means are deposited, cells designated for the application of the coercive means of provisional isolation, and cells designated for prolonged mechanical restraint, with sound capture) are installed and have image recording capabilities, without sound, with recordings extracted whenever these cells are used. The extracted recordings maintain security measures.

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provided in the Instruction.

In the case of the facilities specifically designated for conducting full-body searches, equipped with an independent sound recording system and elements that preserve the privacy of the affected individual, which also qualifies as a special facility according to Instruction ***INSTRUCTION.1, the installation of 15 cameras with recording and an independent sound system for these facilities has been requested, in accordance with the provisions of the regulation, and installation is pending.

In the rest of the common areas (hallways, patios...), there is video surveillance, but the personnel viewing the images cannot extract them.

The entry and use of mobile phones inside the Center is prohibited by internal regulations, both for the incarcerated population and for employees and visitors.

The search room is closed 24 hours a day except for use in specific cases.

Therefore, based on the information provided in the previous paragraphs, it has been verified that the video surveillance systems are in compliance with Instruction ***INSTRUCTION.1, dated ***DATE.1, from the General Secretariat of Penitentiary Institutions.

In accordance with the above, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the GENERAL SECRETARIAT OF PENITENTIARY INSTITUTIONS.

Against this resolution, which concludes the administrative process as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

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